

MEMORANDUM

To: Newcastle Planning Board (*working draft for Ben Frey*)

From: Ben Frey (*Core Zoning Code amendment drafter*)

Date: June 9, 2026

Re: What the Fall-2026 redline does to **Article 7 (Administration)** – a section-by-section analysis of the proposed development-review overhaul

Status: Discussion draft. Describes another planner's proposed amendments; no code language of ours is changed here.

1. OVERVIEW & SCALE

Article 7 is the **largest single target** in the Fall-2026 redline – roughly **496 marked changes**, far more than any other article. Taken together they are not edits to the existing process so much as a **wholesale re-write of how Newcastle reviews and approves development**: a new permitting spine, a project-size-based tier system, reallocated authority between the Code Enforcement Officer (CEO) and Planning Board, a rebuilt public-notice and public-hearing regime, and heavy alignment to current Maine statute (notably the 2023 housing law, LD 2003).

Relationship to our work: this overhaul is **largely independent of the Thoroughfares question** and could advance on its own track. The one real intersection is terminology – it renames "Permitting Authority" to "reviewing authority" Code-wide, which our Article 3 (§13 and elsewhere) would need to match (see §6 below).

Bottom line. A coherent, statute-aligned modernization of the Town's permitting process. It is sound in direction; the main issues are (a) it must be read as **one package** with the Article 1 permit-triggers and the Article 2 "Project Size Standards," (b) a handful of **policy choices** deserve the Board's attention (CEO now adjudicates minor subdivisions; Large Project Plans move to the Planning Board), and (c) it carries several **copy-paste drafting errors** to clean up.

2. SEVEN CROSS-CUTTING THEMES

1. **"Permitting Authority" → "reviewing authority"**, paired with a new principle: the *reviewing authority* (CEO or Planning Board) **decides**; the **CEO is the sole issuer of permits**, only after every required review is approved (new §2).
2. **"Board of Selectmen" → "Select Board"** throughout (~15 places).
3. **"Permit" → "Review"** in the application-type names: *Use Permit* → *Base Use Review*; *Expanded Use Permit* → *Expanded Use Review*; *Residential Companion Use Permit* → *Residential Companion Use Review*; *Special Permit* → *Special Use Review* – matching the Article 2 use-table legend.
4. **Project-size review tiers** – Small vs. Large Project Plan, Minor vs. Major Subdivision – keyed to the **per-District thresholds** newly added to Article 2.
5. **Authority reallocation** by tier (see table in §4).
6. **Business-day timelines** and standardized **completeness / conditions / findings-of-fact** language across every review type.
7. **Maine-statute alignment**: 30-A §4402 (subdivision exceptions), §4404 (subdivision criteria), §4452 (fines); Title 23 §704 (DOT entrances); 38 M.R.S. §420-D (stormwater) & §480-B (water-body defs); Title 12 §8869 (liquidation harvesting).

3. WHAT'S GENUINELY NEW (NOT A RENAME)

- **§2 PERMITTING** – a new section establishing that only the CEO issues permits, only after required reviews are approved; permits conflicting with conditions are void; vested rights attach on issuance.

- **§XX MINOR SUBDIVISION** – an entirely new CEO-reviewed track for 3-lot-to-threshold subdivisions, importing the **full 30-A §4404 review criteria** (pollution, water, erosion, traffic, sewage, solid waste, scenic/natural, financial capacity, surface & ground water, flood, wetlands, stormwater, “spaghetti-lot” 5:1 limit, lake phosphorus, adjoining-municipality impact, liquidation harvesting).
- **Multi-Unit Residential approval standards** – new in both §10 and §11: any project of **4+ dwelling units** must meet Stormwater (§420-D), Sewage, Water, and Traffic (Title 23 §704) standards.
- **Explicit Approval Standards** added to the use reviews (§15–§17), which previously cross-referenced rather than listing criteria.

4. SECTION-BY-SECTION

§	Section	Key changes
1	Core Code Administration	Purpose trimmed; deletes references to a separate “ordinance administrator.”
2	Permitting (NEW)	CEO is sole permit-issuer; permits only after required reviews approved; void if conflicting with conditions; vested rights on issuance.
3	General Application Procedures	Completeness now determined by CEO (requires fees paid + pre-submittal meetings held); fees per Select Board schedule; third-party-review escrow; approved plans recorded by applicant within 90 days. Pre-submittal meeting required for Large Project Plan, Subdivision, Master Plan, Special Permit, Variance.
5	Public Notice	Rewritten. The Table 7.1 matrix is dropped for explicit per-application-type lists. Mailed (≥9 business days, applicant-paid, return receipt; radius 1,000 ft in D1 / 250 ft elsewhere); Published (web ≥10 bd + newspaper ≥2×); Posted (≥10 bd at Town Office).
6	Public Hearings	Rewritten. Hearing required for Major Subdivision, Master Plan, Special Permit, Variance, Zoning Amendment; Table 7.1 deleted ; documents available ≥10 bd prior; conduct rules (chair opens/closes, ≥3-min comment, written comment, applicant response).
8	Misc Procedures	Withdrawal, 2-year repetitive-application bar, failure-to-act = auto-approval , decision filed with Town Clerk in 5 bd – all reworded to “reviewing authority.”
9	Application Review Types	Simplified; deletes the enumerated “Additional Permit Applications” list (Shoreland, Resource Protection, Floodplain, Demolition Delay, Timber Harvesting, Earth-Filling/Grading, Erosion Control, Seasonal Conversion, Mobile Home Park). (See <i>flag</i> in §6.)
10	Small Project Plan Review	Applicability now keyed to the Art. 2 size thresholds ; 3+ units reviewed as a project plan, not a subdivision (§4402); CEO acts; new multi-unit (4+)

§	Section	Key changes
		standards ; conditions limited to compliance.
11	Large Project Plan Review	Authority moves CEO → Planning Board; parking trigger 50 → 20 spaces ; utilities-to-3+-lots trigger; business-day timelines (PB hearing within 30 bd; act within 30 bd); findings of fact; multi-unit standards; performance bond.
XX	Minor Subdivision (NEW)	CEO -reviewed; circulated to Road Commissioner, Fire Chief, Life Safety Officer, Great Salt Bay Sewer & Water District (20 bd to comment); full §4404 criteria ; security/bond; record in 6 months or void; licensed-surveyor monuments; Town-contracted, applicant-paid engineer inspection.
12	Major Subdivision	Restructured to the threshold system; deletes the RDEO reference in approval standards; old triggers (3+ units, road/utility construction) removed (route to project plans); PB acts, CEO administers; "Issuance of Zoning Permits" section replaced by recording-based "Validity"; 4 hard copies (was 3 mylar).
14	Plan Revision	CEO determines de-minimis vs. reviewing-authority review (rename only).
15	Base Use Review	CEO is the reviewing authority (was "designated on each District page"); 7-day completeness / 10-bd action; new explicit approval standards (Art. 1 + Art. 2 use table & standards + Art. 6 + Comp Plan + prior approvals).
16	Expanded Use Review	Planning Board reviews; 30-bd action; new approval standards — note an added clause tying expanded use to a Small/Large Rural Compound Building Group .
17	Residential Companion Use Review	CEO reviews; use must be on the same lot as a legal residential use ; new approval standards.
18	Special Use Review	"Special permit" → "special use review"; PB acts; hearing within 30 bd; decision within 30 bd (was 45) ; approval valid 2 years (expires if the use isn't established); conditions standardized.
20–21	Land Conveyance · Zoning Amendment	"Board of Selectmen" → "Select Board"; timelines retained.
26–29	CEO · Planning Board · Board of Appeals · Life Safety	Appointments by Select Board ; CEO fines per the schedule or 30-A §4452 ; PB/BoA membership unchanged in substance.

5. THE SUBSTANTIVE SHIFTS WORTH THE BOARD'S ATTENTION

- **CEO now adjudicates minor subdivisions** against the full statutory §4404 criteria. This is an efficiency gain, but it **delegates subdivision findings to the CEO** — a real policy choice (many towns keep all subdivision review with the Planning Board).
- **Large Project Plans move from the CEO to the Planning Board**, and the **parking trigger drops 50 → 20 spaces** — together these push more mid-size projects into full Board review.
- **Housing liberalization (LD 2003):** dividing a structure into **3+ dwelling units is a project plan, not a subdivision** — a meaningful easing for multi-unit/missing-middle housing, paired with baseline multi-unit standards (stormwater/sewage/water/traffic).
- **Notice burden shifts to the applicant** (develops and mails notice at its own expense, return receipt) and the **D1 radius jumps to 1,000 ft** (vs. 250 ft elsewhere) — sensible for large rural lots.
- **Findings of fact at the CEO level** (small project, minor subdivision, base/residential-companion use) — a workload and record-keeping implication for the CEO's office.

6. FLAGS & COORDINATION POINTS

1. **Terminology vs. our Article 3.** The Code-wide "Permitting Authority → reviewing authority" rename, and the new §2 permit-issuance spine, must be reconciled with **our Article 3 §13 (Administration)**, which still says "Permitting Authority." If both packages advance, align the term.
2. **The deleted overlay review types** (Shoreland, Floodplain, Resource Protection, Timber Harvesting, Erosion, Seasonal Conversion, Mobile Home Park) — confirm these are now carried by **separate ordinances** (Shoreland) or otherwise preserved; dropping them as enumerated review types shouldn't silently remove the requirement.
3. **Read as one package.** Article 7 only works alongside the **Article 1 permit-trigger list** and the **Article 2 Project Size Standards** (the thresholds it references live there). Reviewing it in isolation will mislead.
4. **Copy-paste drafting errors to fix** (the use-review and subdivision sections were clearly templated quickly):
 - §XX Minor Subdivision **G.2** reads "Conditions on the approval of a **Large Project Plan**" (should be *minor subdivision*).
 - §12 Major Subdivision **H** amendments refer to a "**minor subdivision plan**" (wrong section).
 - §17 Residential Companion **D** twice refers to an "**expanded use** application" (should be *residential companion*).
 - §18 Validity has two paragraphs numbered "2."; §12.E.7 reads "**ThePlanning** Board."
 - §16 Expanded-Use approval standard is missing its list letter and the "Rural Compound Building Group" clause looks like an unfinished placeholder.
5. **Internal cross-references** are inconsistent ("Article 7.2," "Article 7.A.1," "7.F.1," "Article 7.29 Life Safety") and will need a renumbering pass once the section order is final (the new §2 Permitting and §XX Minor Subdivision shift everything).

7. RECOMMENDATION

Treat the Article 7 overhaul as a **separate, parallel workstream** from the Thoroughfares reconciliation — it doesn't depend on it and is generally well-conceived and statute-current. Before it advances: (a) confirm the deleted overlay reviews are preserved elsewhere; (b) put the two authority shifts (CEO-adjudicated minor subdivisions; Large Project Plans → Planning Board, 20-space trigger) explicitly to the Board; (c) run a cross-reference/renumbering and copy-paste-error cleanup; and (d) align the "reviewing authority" term with our Article 3 §13 so the two efforts don't reintroduce the very inconsistency we are trying to avoid on the Thoroughfares side.

This memo analyzes another planner's draft for coordination purposes; it is not legal advice.